

Sukhwinder Singh & Anr vs State Of Punjab on 27 September, 2013

Author: Naresh Kumar Sanghi

Bench: Naresh Kumar Sanghi

Criminal Appeal No.S-219-SB of 2000

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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

Criminal Appeal No.S-219-SB of 2000
Date of Decision: 27th September, 2013

Sukhwinder Singh & anr.

... Appellants

Versus

State of Punjab

... Respondent

CORAM: HON'BLE MR. JUSTICE NARESH KUMAR SANGHI

Present: Mr. GS Sahota, Advocate,
for appellant No.1.

Mr. Vikas Bahl, Advocate, and
Mr. MS Batth, Advocate,
for appellant No.2.

Mr.Sandeep Chhabra, DAG, Punjab.

Naresh Kumar Sanghi, J.

This judgment shall dispose of Crl. Appeal No.219- SB of 2000 filed by the appellants, Sukhwinder Singh and Charanjit Singh son of Ram Singh, and Crl. Appeal No.248-SB of 2000, filed by Balwinder Singh, Kashmir Singh and Charanjit son of Kartar Singh since challenge in both the appeals is to the judgment of conviction and the order of sentence dated 23.2.2000 passed by learned Additional Sessions Judge, Nawanshahar, whereby the appellants were convicted and sentenced in the following manner:-

Accused Balwinder Singh @ Peeta Sr. Offence Sentence Fine In default (RI) No (RI) 1
Section 148, IPC 6 months - -

2 Section 307, IPC 7 years Rs.1000/- 3 months
Criminal Appeal No.S-219-SB of 2000 -2

Sr. No	Offence	Sentence (RI)	Fine	In default (RI)
3	Section 326/149, IPC	3 years	Rs.500/-	1 month
4	Section 323/149, IPC	3 months	-	-
5	Section 325/149, IPC	1 year	Rs.250/-	15 days
6.	Section 323, IPC	3 months	-	-
7.	Section 324/149, IPC	6 months	-	-
8.	Section 325, IPC	1 year	Rs.250/-	15 days

Accused Charanjit S/o Kartar Singh

Sr. No	Offence	Sentence (RI)	Fine	In default(RI)
1	Section 148, IPC	6 months	-	-
2	Section 324, IPC	6 months	-	-
3	Section 307/149, IPC	7 years	Rs.1000/-	3 months
4	Section 323/149, IPC	3 months	-	-
5	Section 326, IPC	3 years	Rs.500/-	1 month
6	Section 325/149, IPC	1 year	Rs.250/-	15 days
7	Section 323/149, IPC	3 months	-	-
8	Section 325/149, IPC	1 year	Rs.250/-	15 days

Accused Kashmir Singh

Sr. No	Offence	Sentence(RI)	Fine	In default(RI)
1	Section 148, IPC	6 months	-	-
2	Section 324/149, IPC	6 months	-	-
3	Section 307, IPC	7 years	Rs.1000/-	3 months
4	Section 323/149, IPC	3 months	-	-
5	Section 326/149, IPC	3 years	Rs.500/-	1 month
6.	,Section 325/149, IPC	1 year	Rs.250/-	15 days
7.	Section 323/149, IPC	3 months	-	-
8.	Section 325/149, IPC	1 year	Rs.250/-	15 days

Accused Charanjit Singh, S/o Ram Singh Sr. Offence Sentence(RI) Fine In default(RI) No 1 Section 148, IPC 6 months - -

2 Section 324/149, IPC 6 months - -

3 Section 307, IPC 7 years Rs.1000/- 3 months 4 Section 323, IPC 3 months - -

5 Section 326/149 IPC 3 years Rs.500/- 1 month

6. Section 325 IPC 1 year Rs.250/- 15 days

7. Section 323 IPC 3 months - -

8. Section 325/149, IPC 1 year Rs.250/- 15 days Criminal Appeal No.S-219-SB of 2000 -3 Accused Sukhwinder Singh Sr. Offence Sentence Fine In default(RI) No (RI)

1 Section 148, IPC 6 months - -

2 Section 324/149, IPC 6 months - -

3 Section 307, IPC 7 years Rs.1000/- 3 months 4 Section 323/149, IPC 3 months - -

5 Section 326/149, IPC 3 years Rs.500/- 1 month

6. Section 325/149, IPC 1 year Rs.250/- 15 days

7. Section 323, IPC 3 months - -

8. Section 325/149, IPC 1 year Rs.250/- 15 days All the substantive sentences were ordered to run cuncurrently.

During the pendency of the appeal No.248-SB of 2000, appellant Charanjit son of Kartar Singh had died and, therefore, vide order of even date, the appeal qua him has abated.

The brief facts of the case are that on 5.6.1995, Jarnail Singh ((PW-3) went to Village Dosanjh Khurd to deliver a message to Gurmail Singh ((PW-5) as Gurmail Singh and his brother Jaswinder Lal ((PW-4) were working with Jarnail Singh ((PW-3). When Jarnail Singh ((PW-3) was on his way back to his home after having delivered the message to Gurmail Singh ((PW-5) and had reached near the village pond, in the meanwhile at about 8.00 p.m., Devinder Singh armed with kirpan; Charanjit son of Kartar Singh (appellant) armed with a Gandasi; Balwinder Singh @ Peeta (appellant) holding a dang and a gandasi ((Ex.P-30 & P-31); Kashmir Singh (appellant) holding kirpan; Charanjit Singh son of Ram Singh (appellant) armed with a dang; Jaswinder Singh carrying a dang, Jodha armed with a gandasi; Sikandar Singh holding a gandasi and Sukhwinder Singh (appellant) armed with a dang came there in Criminal Appeal No.S-219-SB of 2000 -4 a jeep. Charanjit Singh son of Ram Singh (appellant) exhorted his co-accused that Jarnail Singh ((PW-3) should not be allowed to go alive and he be taught a lesson for having not surrendered the possession of the land. Devinder Singh (proclaimed offender) inflicted a kirpan blow on the left side of head of Jarnail Singh ((PW-3). Jaswinder Singh (proclaimed offender) also dealt a dang blow on the left side of head of Jarnail Singh ((PW-3). Charanjit Singh son of Ram Singh (appellant) inflicted a dang blow on the right eye of Jarnail Singh ((PW-3). Kashmir Singh (appellant) caused a kirpan blow hitting on the right ear of Jarnail Singh ((PW-3). Sikander Singh inflicted an injury on the right cheek of Jarnail Singh ((PW-3) by means of a gandasi. Balwinder Singh alias Peeta (appellant) had inflicted four dang blows on the left shoulder of Jarnail Singh ((PW-3). Charanjit Singh son of Ram Singh (appellant) had inflicted three dang blows, which landed near and around the backbone of

Jarnail Singh ((PW-3). Jaswinder Singh inflicted four dang blows hitting on the right ear of Jarnail Singh ((PW-

3). He further dealt two dang blows hitting left and right knee of Jarnail Singh (PW-3). Charanjit son of Kartar Singh (appellant) inflicted gandasi blows on the left side of head of Jarnail Singh ((PW-3). Noise was raised by Jarnail Singh ((PW-

3) which attracted Jaswinder Lal ((PW-4) and Gurmail Singh ((PW-5) on the spot and the accused caused injuries to them also. Jarnail Singh (PW-3) fell down on the earth and became unconscious. The motive for causing the injuries was that Jarnail Singh (PW-3) had taken agricultural land of Jagir Singh (elder brother of father of Devinder accused) on lease and he Criminal Appeal No.S-219-SB of 2000 -5 was not leaving possession of the said land. The injured, three in number, were shifted to the hospital, where they were medico-legally examined on the intervening night of 5/6.6.1995. On the next day, they were also radiologically examined and on the basis of statement ((Ex.PL) of Jarnail Singh (PW-3), recorded by ASI Gurbax Ram (PW-7) an entry was recorded in the daily diary register on 11.6.1995. The Station House Officer, Ranbir Singh, verified the facts and thereafter FIR No.51 was recorded on 13.6.1995 at Police Station, Banga. Balwinder Singh, Charanjit son of Kartar Singh, Devinder Singh and Sikandar Singh were arrested. Balwinder Singh (appellant) got recovered dang (Ex.P-30) and gandasi (P-31); Devinder Singh got recovered kirpan (Ex.P-28), while Sikandar Singh got recovered gandasi (Ex.P-29). Out of the nine accused nominated in the FIR, Kashmir Singh, Sukhwinder Singh, Charanjit Singh son of Ram Singh, Jaswinder Singh and Jodha were declared innocent and hence, they were placed in Column No.2 while charge sheet was filed for the prosecution of Balwinder Singh (appellant) Devinder Singh (proclaimed offender), Sikander Singh (proclaimed Offender) and Charanjit, son of Kartar Singh (died during pendency of the present appeal).

The copies of the chargesheet and the documents enclosed therewith were supplied to Balwinder Singh and Charanjit son of Kartar Singh free of costs in compliance of the provisions contained in Section 207, Cr.P.C, and thereafter the case was committed to the Court of Session since the offence under Section 307, IPC, was exclusively triable by the said Criminal Appeal No.S-219-SB of 2000 -6 Court. Learned Additional Sessions Judge vide his order dated 21.8.1997 framed the charges for the offences punishable under Sections 307, 323, 324 and 325 read with Section 34, IPC, against Balwinder Singh (appellant) and Charanjit son of Kartar Singh (since deceased).

Thereafter on the application under Section 319, Cr.P.C, presented by learned Public Prosecutor, vide order dated 9.10.1998, Kashmir Singh, Sukhwinder Singh, Charanjit Singh son of Ram Singh, Jaswinder Singh and Jodha were ordered to be summoned to face trial as additional accused along with Balwinder Singh and Charanjit son of Kartar Singh. Since Jaswinder Singh and Jodha did not appear before the learned trial Court, they were declared as proclaimed offenders. Vide order dated 21.12.1998, Balwinder Singh, Charanjit son of Kartar Singh, Sukhwinder Singh, Kashmir Singh and Charanjit Singh son of Ram Singh were chargesheeted as under:-

"1. That firstly on 5.6.1995, at about 8.00 p.m., in the area of village Dosanjh Khurd, you all along with your co-accused Sikandar Singh, Devinder Singh, Jaswinder Singh

& Jodha Singh (since proclaimed offenders) were members of unlawful assembly, the object of which was to cause rioting and at that time, you were armed with deadly weapons & thereby you all committed the offence punishable under Section 148 of the IPC and within my cognizance;

2. That secondly on the same date, time and place, in prosecution of the common object of your above-said unlawful assembly, you Balwinder Singh alias Peeta, Charanjit Singh, S/o Ram Singh, Sukhwinder Singh and Kashmir Singh along with Criminal Appeal No.S-219-SB of 2000 -7 your co-accused Jaswinder Singh (since proclaimed offender) and Davinder Singh (since proclaimed offender) and Sikandar Singh alias Rana (since proclaimed offender) did act to cause injuries collectively dangerous to life with dangs, gandassi and kirpan to Jarnail Singh with such an intention or knowledge and under such circumstances that if by that act, you had caused the death of Jarnail Singh, you had been guilty of murder and you thereby committed an offence punishable under Section 307 of IPC while your co-accused Charanjit, S/o Kartar Singh and Jodha, S/o Duman committed an offence punishable under Section 307 read with Section 149 of IPC and within my cognizance;

3. Thirdly, on the same date, time and place in prosecution of the common object of your above- said unlawful assembly you accused Charanjit, S/o Kartar Singh caused grievous hurt to (PW Jaswinder Lal by means of gandassi, which is an instrument of cutting and thereby you committed an offence punishable under Section 326 of IPC; whereas your co-accused committed an offence punishable under Section 326 read with Section 149 of IPC and within my cognizance;

4. Fourthly, on the same date, time and place; in prosecution of the common object of your abovesaid unlawful assembly you Charanjit, S/o Ram Singh caused grievous hurt to Jaswinder Lal (PW by means of dang and thereby committed an offence punishable under Section 325 of IPC; whereas your co-accused committed an offence punishable under Section 325 read with Section 149 IPC and within my cognizance;

5. Fifthly, on the same date, time and place, in prosecution of the common object of your above- said unlawful assembly you Sukhwinder Singh; Balwinder Singh alias Peeta, Charanjit, S/o Ram Criminal Appeal No.S-219-SB of 2000 -8 Singh caused hurt to Jaswinder Lal (PW by means of dang and thereby committed an offence under Section 323 of IPC; whereas your co-accused committed the offence punishable under Section 323 read with Section 149 of IPC and within my cognizance;

6. Sixthly, on the same date, time and place, in prosecution of the common object of your above- said unlawful assembly, you Balwinder Singh alias Peeta caused grievous hurt to (PW Gurmail Singh by means of dang and thereby committed an offence punishable under Section 325 of IPC; whereas your co-accused committed an offence punishable under Section 325 read with Section 149 of IPC and within my

cognizance;

7. Seventhly on the same date, time and place, in prosecution of the common object of your above- said unlawful assembly, you Charanjit, S/o Kartar Singh caused hurt to (PW Gurmail Singh by means of Gandassi and thereby committed an offence punishable under Section 324 of IPC; whereas your co-accused committed the offence punishable under Section 324 read with Section 149 of IPC and within my cognizance.

8. Eighthly, on the same date, time and place, in prosecution of the common object of your above- said unlawful assembly, you Charanjit, S/o Ram Singh caused hurt to (PW Gurmail Singh by means of Dang and thereby committed an offence punishable under Section 323 of IPC; whereas your co-accused committed the offence punishable under Section 323 read with Section 149 of IPC and within my cognizance."

Learned counsel for the appellants in both the appeals submitted that they do not want to challenge the conviction of the appellants. However, they submitted that the Criminal Appeal No.S-219-SB of 2000 -9 substantive sentences awarded to the appellants were on higher side.

Learned counsel for the State did not oppose the prayer made by learned counsel for the appellants as far as the conviction part is concerned. However, he submitted that keeping in view the nature and number of the injuries received by the injured persons, there is no much scope for reduction of the substantive sentence. However, he submitted that in the event of some concession to the appellants in their substantive sentences, then adequate compensation be awarded to the injured persons.

Though learned counsel for the appellants have proposed not to argue the case on merits so far as conviction of the appellants is concerned, but to satisfy the conscience of this Court, the material available on record has been rescanned.

The prosecution has produced Dr. HS Dhir as (PW-

1). He had radiologically examined Jarnail Singh (PW-3), Jaswinder Lal (PW-4) and Gurmail Singh (PW-5) and found two fractures on the person of Jarnail Singh; fracture of right arm of Gurmail Singh and fractures of left clavicle near its acromial and fracture of the head of fifth metacarpal bone of Jaswinder Lal. Dr. Davinder Kaur, who was examined as (PW-2), had medico-legally examined three injured persons on the intervening night of 5/6.6.1995 and found 20 injuries on the person of Jarnail Singh (PW-3), 18 injuries on the person of Jaswinder Lal (PW-4) and 6 injuries on the person of Gurmit Singh (PW-5). She also declared that collectively 20 injuries on Criminal Appeal No.S-219-SB of 2000 -10 10- the person of Jarnail Singh (PW3) were dangerous to his life. Complainant Jarnail Singh injured was examined as (PW-3 and he completely reiterated the facts as disclosed in his statement (Ex.PL) and, thus, fully supported the prosecution case. Likewise, injured Jaswinder Lal (PW-4) and Gurmail Singh (PW-5) also supported the prosecution case and deposed

about the injuries received by them at the hands of the appellants and their co-accused.

The prosecution further examined SI Jalwant Singh as (PW-6) and ASI Gurbax Ram as (PW-7). Both of them had investigated the matter and they deposed in accordance with the investigation conducted by each one of them.

After completion of the prosecution evidence, the statements of the appellants and that of their co-appellant Charanjit son of Kartar Singh (deceased) were recorded in terms of Section 313, Cr.P.C. The appellants Balwinder Singh, Kashmir Singh, Charanjit Singh son of Ram Singh and Sukhwinder Singh denied the allegations in toto while Charanjit son of Kartar Singh(deceased) stated as under:-

"Q; Anything else you want to say?

Ans; I am innocent. On 5.6.1995, I was present in my house in Village Dosanjh Khurd. Devinder Singh and Sikandar Singh had come to me and we were talking with each other. It was about 10.30 PM, when Jarnail Singh (PW armed with kirpan), Jaswinder Lal and Gurmail Singh armed with dang, each came in front of my house and raised lalkara to send Devinder Singh out side for being taught a lesson for demanding possession of his uncle's land, on lease with Jarnail Singh (PW). I came out of my house and requested them not to make a noise. However, they started inflicting injuries on my person. I raised alarm for help which attracted Devinder Singh and Sikandar Singh and they both in order to save me, caused injuries to the PWs. Jarnail Singh etc. in exercise of their right of private Criminal Appeal No.S-219-SB of 2000 -11 11- defence. My wife Kalwinder Kaur also came there and witnessed the occurrence. The other accused were not present nor they caused any injury to any of the PWs."

Dr. Mangat Singh, Medical Officer, Primary Health Centre, Possi, Dist. Hoshiarpur, was examined, as DW-1. He deposed that while working as Medical Officer at Civil Hospital, Banga, he medico-legally examined Charanjit son of Kartar Singh on 6.6.1995 and found one incised wound over the right side of face vertically placed, and complained of pain over the left half of chest and front abdomen. After perusing the X-ray report, injuries Nos.1 & 3 were declared simple while the injury on the left half of chest was declared grievous. In cross- examination, the defence witness admitted that injury No.1 on the person of Charanjit Singh could be self-suffered or self- inflicted while injury No.2 could occur by fall and there was no injury as described at No.3 in medico-legal sense. He further admitted that the duration of injury No.2 could not be less than one week while it could extend to two weeks.

After perusal of the material available on record, this Court is of the considered view that the appellants have rightly been held guilty for the offences stated in the earlier part of this judgment by the learned Trial Court and as such, the learned counsel for the appellants have rightly proposed not to challenge the impugned judgment so far as conviction is concerned. However, there appears to be substance in their submissions when they submit that the sentences awarded to the appellants are on higher side on the following grounds:-

1. that the appellants have not caused serious injuries attracting the mischief of Section 307, IPC, Criminal Appeal No.S-219-SB of 2000 -12 12-

to Jarnail Singh (PW-3);

2. occurrence had taken place in the month of June, 1995 and even after passing of 18 years, no other incident has taken place;

3. the appellants remained on bail during trial and pendency of the appeal, but they did not misuse the concession of bail;

4. the appellants have family to maintain and if after a gap of 18 years they are sent to custody then not only the appellants but their family members would also suffer;

5. the appellants have already suffered sufficient incarceration;

6. that the appellants are ready to adequately compensate the injured person; and

7. the appellants Kashmir Singh, Charanjit Singh son of Ram Singh and Sukhwinder Singh were found innocent by the police, therefore, they were placed in Column No.2 while filing the chargesheet (report under section 173, Cr.P.C.). Therefore, some concession can be extended to them in their substantive sentence.

Learned counsel for the State has produced the affidavits of DSP, Central Jail, Jalandhar, showing the period of incarceration suffered by the appellants Balwinder Singh, Kashmir Singh, Charanjit Singh son of Ram Singh and Sukhwinder Singh which are taken on record. On the basis of said affidavits, he submits that Balwinder Singh-appellant has suffered incarceration for 3 months 10 days while the remaining appellants have suffered incarceration for approximately two months and the said sentence is inadequate in view of the conviction of the appellants for various offences in this case. However, he has fairly admitted Criminal Appeal No.S-219-SB of 2000 -13 13- that the appellants are neither required nor involved in any other case and according to his information, no other incident had taken place between the private parties during the last 18 years.

I have heard learned counsel for the parties with regard to quantum of sentence and keeping in view the totality of the facts and circumstances of the case, each appellant is ordered to suffer the following sentences.

Accused Balwinder Singh @ Peeta

Sr. No	Offence	Sentence (R.I)	Fine	In default (R.I)
1	Section 148, IPC	6 months	-	-
2	Section 307, IPC	2 years	Rs.25,000/-	6 months
3	Section 326/149, IPC	2 years	Rs.10,000/-	6 months
4	Section 325, IPC	1 year	Rs.5000/-	3 months

5 Section 325/149, IPC 1 year
6. Section 324, IPC 6 months

Accused Kashmir Singh

Sr. No	Offence	Sentence (R.I)	Fine	In default (R.I)
1	Section 148, IPC	6 months	-	-
2	Section 307, IPC	2 years	Rs.25,000/-	6 months
3	Section 323/149, IPC	3 months	-	-
4	Section 329/149, IPC	3 months	-	-
5	Section 324/149, IPC	6 months	-	-
6.	Section 325/149, IPC	1 year	-	-
7.	Section 325/149, IPC	1 year	Rs.5000/-	3 months
8.	Section 326/149, IPC	2 years	Rs.10,000/-	6 months

Accused Charanjit Singh, S/o Ram Singh Sr. Offence Sentence Fine In default(R.I) No (R.I) 1
Section 148,IPC 6 months - -

2 Section 307, IPC 2 years Rs.25,000/- 6 months 3 Section 323, IPC 3 months - -

4 Section 323, IPC 3 months - -

Criminal Appeal No.S-219-SB of 2000 -14 14-

Sr. No	Offence	Sentence (R.I)	Fine	In default(R.I)
5	Section 324/149, IPC	6 months	-	-
6.	Section 325, IPC	1 year	Rs.5000/-	3 months
7.	Section 326/149, IPC	2 years	-	-
8.	Section 326/149, IPC	2 years	Rs.10,000/-	6 months

Accused Sukhwinder Singh, S/o Ram Singh Sr. Offence Sentence Fine In default(R.I) No (R.I) 1
Section 148, IPC 6 months - -

2 Section 307, IPC 2 years Rs.25,000/- 6 months 3 Section 323/149, IPC 3 months - -

4 Section 324/149, IPC 6 months - -

5 Section 325/149, IPC 1 year Rs.5000/- 3 months

6. Section 325/149, IPC 1 year - -

7. Section 326/149 IPC 2 years Rs.10,000/- 6 months All the substantive sentences shall run

concurrently. On realization of the amount of fine from the four appellants, the same shall be converted into compensation and out of it, Rs.80,000/- would be paid to Jarnail Singh (PW-3); Rs.50,000/- to Jaswinder Lal (PW-4) while remaining Rs.30,000/- would be paid to Gurmail Singh (PW-5). After the amount of fine is deposited, notices shall be issued to the injured, namely, Jarnail Singh, Jaswinder Lal and Gurmail Singh by the learned trial Court so that they may move proper application for withdrawal of the compensation as awarded by this Court. The appellants shall deposit the fine imposed by this Court within three months from the date of receipt of certified copy of the judgment. It is made clear that the amount of fine imposed by the learned trial Court upon the each appellant shall merge into the fine imposed by this Court.

With the above modifications in the order of sentence , the present appeals are disposed of accordingly.

Criminal Appeal No.S-219-SB of 2000 -15 15- A copy of this judgment be placed on the file of Crl. Appeal No. S-248-SB of 2000 also.

September 27, 2013
monika

(Naresh Kumar Sanghi)
Judge